

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: June 25, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

LINE 9	25CV471673	KPFF, Inc., dba DPFF Consulting Engineers vs Kevin Clark et al.	Motion Order OFF CALENDAR. Moving party/KPFF, Inc. dba DPFF Consulting Engineers filed an application for an order to serve its petition pursuant to Code of Civil Procedure section 1798.201 through the California Secretary of State that was GRANTED on June 23, 2026 by this Court. Plaintiff's requested order on unlawful use of personal identifying information was GRANTED on June 22, 2026 by the Honorable Franco. Plaintiff also filed an application for immediate adjudication of the petition on the merits under Civil Code section 1798.202 that was GRANTED on June 2, 2026 by the Honorable Franco. No other motion or application is pending in front of the Court.
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9:01 A.M.			
LINE 1	1999-7-CV-382244	First Select Corp vs Lopez Annette	Claim of Exemption Parties to appear.
LINE 2	19CV349609	Bh Financial Gorup, Llc vs Rocio Solorzano	Claim of Exemption Parties to appear.
LINE 3	23CV426238	Jaiden Holland vs Jennifer Chapman et al	Minor's Compromise Claim Parties to appear.
LINE 4	24CV443781	Demar, LLC vs Mike Mak	Order of Examination Parties to appear.

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9:00 A.M.

Calendar Lines # 1

Case Name American Express National Bank vs Anil Francis

Case No. 23CV426343

Motion for Entry of Judgment

I. BACKGROUND

This collections case stems from a non-payment of a credit card account. On November 17, 2023, Plaintiff American Express National Bank filed a Complaint against Defendant Anil Francis for the outstanding debt and alleged damages in the amount of \$33,200.07.

On April 2, 2024, the parties filed a Notice of Settlement and Stipulation for Entry of Judgment Pending Performance pursuant to Code of Civil Procedure section 664.6. (Declaration of Ren, p. 2; Exhibit A). Defendant Francis signed the agreement on January 1, 2024 and the plaintiff signed the agreement on April 1, 2024. (*Id*). The settlement agreement set forth a payment plan for a total amount of \$24,120.00 that was to be paid by December 11, 2025. (*Id*). Defendant agreed to monthly payments starting of \$1,005.00 that was to be paid on or before January 11, 2024 and continuing thereafter through December 11, 2025. (*Id*). The parties stipulated that in the event that the defendant failed to make the scheduled payments, the defendant would be in default. (*Id*). The agreement expressly stated that the plaintiff could seek a motion or ex parte application to enforce the agreement for the balance and costs, and less payments made. (Exhibit A).

After the settlement agreement was executed, Defendant Francis started making scheduled payments. However, Defendant Francis failed to make payments for the month of July 11, 2024 and each month thereafter. (Declaration of Ren, p. 2). The last payment received was on June 11, 2024. (*Id*).

On September 23, 2025, Plaintiff filed this motion for entry of judgment. The motion was accompanied by a proof of service indicating mail service to the plaintiff. Plaintiff acknowledges credit in the amount of \$7,083.84. Defendant seeks \$569.22 in costs for seeking this entry of judgment. (Memorandum of Costs).

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on June 10 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court carefully reviewed the following: Plaintiff's notice of motion (totaling 3 pages); memorandum of points and authorities (totaling 3 pages); Declaration of Zhen Ren in support of plaintiff's motion and attached Exhibit A (totaling 8 pages); memorandum of cost (totaling 2 pages); proof of service; and the pleadings.

II. LEGAL STANDARD

Code of Civil Procedure section 664.6 provides in relevant part:

“(a) If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.